

NALLATHANGAL WATER RESOURCES TRUST

This **DEED OF TRUST** is executed on this **21st day of August, 2026** at Dharapuram.

BY AND BETWEEN THE TRUSTEES,

1. **GOVINDASAMY NACHIMUTHU**, S/o. Nachimuthu, residing at No. 21 Post Office Road, Palani Adivaram, Palani, Dindigul - 624601 (Aadhaar No.: 900027945168).
2. **NATARAJ SENNIYAPPA**, S/o. Senniyappa, residing at No. 8/115, Elugam Valasu, Ponnivadi, Tiruppur - 638673 (Aadhaar No.: 575236158346).
3. **PANNEER SELVAM C**, S/o. Chinnasamy residing at No.18/58 Salakkadai, Elugamvalasu Post, Ponnivadi, Dharapuram – 638673 (Aadhaar No.: 4488 8265 9013).
4. **PANNEERSELVAM TIRUMALAISAMY**, S/o. Thirumalaisamy residing at No.1 (2), Salakadai, Dharapuram Thaluka, Ponnivadi, Tiruppur – 638673 (Aadhaar No.: 2993 83161975).
5. **CHELLAMUTHU THIRUMALAISAMY**, S/o. Thirumalaisamy residing at No.8/77 Elugamvalasu, Ponnivadi, Dharapuram Thaluka, Tiruppur - 638673 (Aadhaar No.: 8515 4989 6966).
6. **P SUBRAMANIAN**, S/o. Palanisamy residing at No.18/117 P Aanipalayam Ponnivadi, Tiruppur - 638673 (Aadhaar No.: 3026 2844 0301).
7. **S SIVASUBRAMANIAN**, S/o. Sivasamy, residing at No.10/59, Elugamvalasu Post, Dharapuram Thaluka, Tiruppur-638673 (Aadhaar No.: 8677 0592 8468).
8. **PALANISAMY NACHIMUTHU**, S/o. Nachimuthu, residing at No.139, Koneripatti, Dharapuram Thaluka, Ponnivadi, Tiruppur – 638673 (Aadhaar No.: 9749 8542 1744).
9. **PALANISAMY N, S/o. Nachimuthu**, residing at No.48, Koneripatti, Koneripatti Post, Ponnivadi, Tiruppur – 638673 (Aadhaar No.: 3985 8236 2280).

10. THIRUMALAISAMY KUPPUSAMY, S/o.Kuppusamy, residing at No.9/97A, Elugamvalasu, Dharapuram, Ponnivadi, Tiruppur – 638673 (Aadhaar No.: 4031 9457 7573).

(Hereinafter collectively referred to as the "**TRUSTEES**", which expression shall include the trustees for the time being of these presents and their successors in office).

NOW THIS DEED OF DECLARATION OF TRUST WITNESSETH AS FOLLOWS:

1. NAME OF THE TRUST:

The name of the organization shall be: "**NALLATHANGAL WATER RESOURCES TRUST**".

2. REGISTERED OFFICE ADDRESS:

The Registered Office of the Trust shall be situated at No.**45/19, ELLIS NAGAR (PO), POLLACHI ROAD, DHARAPURAM, TIRUPPUR - 638656**, or at such other place or places as the Trustees may decide from time to time.

3. CORE PRINCIPLE & VISION STATEMENT:

"Our Water – Our Land – Our Responsibility."

The fundamental philosophy of the Trust is that protecting our water bodies and natural resources requires the active, direct participation of the public, working lawfully and hand-in-hand with Government departments and local authorities, rather than relying solely upon the Government for such vital upkeep.

4. OBJECTIVES OF THE TRUST:

The primary objective of the Trust is to protect, restore, conserve, and preserve natural resources, water bodies, biodiversity, and the overall environment in villages and surrounding areas for the benefit of the present and future generations. The Trust shall function exclusively as a non-profit public welfare organisation, and all its activities shall be undertaken solely in furtherance of its charitable and environmental objectives.

ENVIRONMENTAL CONSERVATION AND WATER MANAGEMENT OBJECTIVES:

- To protect, conserve, restore, and maintain lakes, ponds, tanks, village ponds, streams, canals, wetlands, and other natural or man-made water bodies.

- To undertake systematic desilting, cleaning, rejuvenation, restoration, and maintenance of water bodies, subject to obtaining the necessary approvals and permissions from the Government, local authorities, and other competent authorities wherever required by law.
- To identify, restore, protect, and maintain the inlet and outlet channels, feeder channels, drainage channels, and related water pathways of water bodies, after obtaining all necessary statutory permissions.
- To remove Seemai Karuvelam (*Prosopis juliflora*) and other invasive, unwanted, or harmful vegetation from water bodies and public places, strictly in accordance with applicable laws and with the permission of the concerned authorities wherever required.
- To promote, establish, and facilitate rainwater harvesting systems and community-based groundwater recharge measures for sustainable water management.
- To undertake tree plantation, afforestation, and ecological restoration programmes, with emphasis on native and locally suitable trees, plants, and vegetation.
- To create awareness and undertake lawful initiatives to prevent the dumping of solid waste, discharge of sewage, industrial effluents, and other pollutants into water bodies and public areas.
- To undertake measures for the conservation of biodiversity, protection of natural habitats, and improvement of local ecological conditions.
- The Trust shall not carry out any activities with the intention of earning Profit and will perform with service motive only.
- No activities of the Trust will be carried out outside India.

PUBLIC AWARENESS, EDUCATION, AND COMMUNITY PARTICIPATION:

- To create awareness among the general public, farmers, students, youth, and local communities regarding water conservation, environmental protection, biodiversity, waste management, and ecological sustainability.
- To organise awareness programmes, campaigns, workshops, seminars, training programmes, rallies, and other lawful activities relating to environmental and water conservation.

- To encourage and coordinate the participation of residents, community members, volunteers, students, and other stakeholders from different villages in environmental protection and conservation activities.
- To promote community ownership and participation in the protection, restoration, and long-term maintenance of local water bodies and natural resources.

COLLABORATION AND INSTITUTIONAL OBJECTIVES:

- To undertake and implement environmental and conservation projects in collaboration with Government departments, local self-government institutions, educational institutions, community organisations, and other legally eligible entities.
- To coordinate with competent Government and local authorities for obtaining necessary approvals, technical assistance, guidance, and support for carrying out the objectives of the Trust.
- To undertake research, surveys, documentation, mapping, monitoring, and other lawful activities relating to water bodies, natural resources, environmental conditions, and conservation requirements.

FINANCIAL AND PUBLIC WELFARE OBJECTIVES:

- To lawfully receive donations, voluntary contributions, grants, subsidies, sponsorships, financial assistance, and other permissible resources from individuals, institutions, Government bodies, corporate entities, and other lawful sources for achieving the objectives of the Trust.
- To utilise the income, funds, properties, and assets of the Trust solely towards its charitable, environmental, conservation, and public welfare objectives and not for the personal benefit of any trustee or private individual.
- To acquire, hold, manage, develop, and utilise movable and immovable properties and other assets, as may be lawfully permitted, exclusively for the attainment of the objectives of the Trust.
- To undertake all such other lawful activities as may be incidental or conducive to the attainment of the above charitable and environmental objectives, without any profit motive.

5. APPOINTMENT OF TRUSTEES:

Any eligible person who fully agrees with, subscribes to, and supports the core objectives of the Trust may become a member, subject to approval by the Governing Board. Specific categories of membership, criteria for admission, and applicable membership subscription fees shall be determined, altered, or amended by the Executive Committee or General Body from time to time.

Non-Profit Clause: The Trust is established solely for public welfare. It shall not function for the personal benefit, commercial gain, dividend distribution, or private profit of any member, office-bearer, or trustee.

6. CESSATION OF TRUSTEESHIP:

A Trust Mentioned below shall cease to be trustee of the Trust if:

- a) He acts against or in violation of the objects, purposes, or interests of the Trust; or
- b) He is involved in, commits, or is convicted of any illegal, unlawful, or criminal activity which, in the opinion of the Trustees, is detrimental to the reputation, functioning, or interests of the Trust.

7. FOUNDING MEMBERS / GOVERNING BOARD:

The administration, policy-making, and initial control of the Trust shall vest in the founding governing Board consisting of a minimum of seven members:

- President: Govindasamy Nachimuthu
- Vice President: Nataraj Senniyappa
- Secretary: Panneerselvam C
- Joint Secretary: Panneerselvam Tirumalaisamy
- Treasurer: Chellamuthu Thirumalaisamy
- Joint treasurer: P Subramanian

8. POWERS OF BOARD OF TRUSTEES:

The Board of Trustees shall have the control and management of the Trust and exercise the following powers:

- a) To determine from time to time to commence and to take up the object and purposes for which the funds of the trust shall be used and allot and allocate to each of the objects such portion of the funds as they deem fit;
- b) To purchase and acquire movable, immovable, tangible or intangible property of any kind for the object of the Trust or as a source of income for the Trust
- c) To sell, mortgage, or dispose of any immovable property/properties belonging to the Trust
- d) To incur all expenditure necessary and incidental as in their own opinion useful for carrying out the objects and administration of the trust
- e) To open one or more bank accounts of the trust with any bank or banks as the Trustees may deem fit and deposit monies of the Trust in the Bank accounts.
- f) To borrow for and on behalf of the Trust with or without security from banks, Governments, Universities or any other government Body/bodies both central and state;
- g) To employ staff of all kinds necessary and useful for carrying out the objects of the trust.
- h) To institute, conduct, defend, compound, withdraw, compromise, adjust, refer to arbitration or to do such things as are incidental and necessary, concerning the affairs of the Trust and to sign and verify vakalats, pleadings, affidavits and to execute other powers which are necessary to carry out the objects of the Trust.
- i) To accept contributions in cash or in kind either by way of addition to the trust funds generally or for any one or more of the specified objects of the Trust.
- j) To establish as many ad hoc committees for any purpose

9. DUTIES OF THE BOARD OF TRUSTEES

The following are the Duties of the Board of Trustees:

- a) All the Properties of Trust including movable and immovable, tangible and Intangible shall only be utilized for meeting the Objects of the Trust
- b) All Trustees of the Board shall discharge their Powers and responsibilities prudently and diligently
- c) Board of Trustees shall attend all the meetings of the Board and the respective Committees without fail. Absence of three Consecutive meetings of the Board of Trustees by a Trustee shall cease to be a member of the Board of Trustees.

10. POWERS AND DUTIES OF FINANCE COMMITTEE:

The Finance Committee of the Trust is entrusted with following powers and duties:

- a) Secretary and Treasurer shall prepare and submit Annual Budget including Estimated Revenue and Expenses for the financial year before beginning of the Financial Year.
- b) Finance Committee in turn shall review the reasonableness and appropriateness of the presented Annual Budget and approve the same with necessary modifications if any.
- c) Treasurer shall submit Quarterly Revenue and Expenses to the Finance Committee in the first Finance Committee meeting from the end of respective quarter with relevant documents and necessary supporting. Finance Committee in turn shall review the books of accounts and make its comments if any.
- d) Further, all the Capital Expenditure shall be approved by the Finance Committee. However, Capital Expenditure upto Rs. 10000 can be incurred without prior approval of the Finance Committee but upon spent, the same shall be presented to the Finance Committee for its post facto approval.
- e) The audited statement of accounts together with Auditors' report shall be laid before the Audit Committee who in turn shall present it to the Board of Trustees.

11. MEETINGS OF THE BOARD AND COMMITTEES:

- a) The Managing Trustee shall preside over all the meetings of the Board of Trustees and General Body Meetings and in his absence, the Joint Managing Trustee elected in the respective meetings shall preside such meeting and in the absence of both, the trustees attended such meeting may elect any one of them to preside over the meeting.
- b) The meetings of the Trustees may be convened by the Managing Trustee or under his direction by any other Trustees.

c) Board of Trustees:

- The Board of Trustees shall meet at least once in a quarter.
- The quorum for a Board meeting shall be one-third (1/3) of the total number of Board of Trustees.

- Similarly, all Committees shall meet at least once in a quarter, and the quorum for such meetings shall be at least two members.
- In the event of an equality of votes, the person presiding over such meeting shall exercise a casting vote (additional vote).

12. RESOLUTIONS:

The Trustees may exercise all the powers vested in them in clause 11 under these presents by resolution passed at a simple majority of the trustees attended such meetings of the Board of Trustees.

Any resolution in writing signed by all Trustees holding office for the time being shall be valid and binding.

13. EXECUTIVE COMMITTEE:

The day-to-day administration, project execution, and operational management of the Trust shall be steered by the Executive Committee.

The Executive Committee shall comprise the President, Vice President, Secretary, Joint Secretary, Treasurer, and other elected Executive Committee Members.

14. FUNDAMENTAL FINANCIAL POLICY:

“Public Money – Public Purpose – Transparent Accounts”

All funds, grants, and contributions received by the Trust shall be treated exclusively as property of the Trust and shall under no circumstances be treated as personal funds of the President, Secretary, Treasurer, or any individual member.

Every rupee received shall be channelled exclusively toward achieving the charter objectives and public welfare programs of the Trust.

15. ACCOUNTS, AUDIT, AND TRANSPARENCY STANDARDS:

Meticulous records and books of accounts shall be maintained for every contribution, donation, or sponsorship received from the public or institutional donors.

The Trust shall maintain clear, contemporaneous records concerning:

- Bank statements and reconciliation records.
- Official numbered receipts.

- Supporting bills, invoices, and payment vouchers.
- Project-wise expenditure allocation sheets.
- Contractor, labour, and machinery hiring expenses.
- Administrative and operational overheads.

The Trust shall comply with all applicable statutory requirements relating to bookkeeping, annual financial audits, regulatory filings, and income tax compliances. To maintain public trust, the Trust may publish project-wise income and expenditure statements for public review and transparency whenever deemed appropriate.

16. BANK ACCOUNT OPERATIONS & MANAGEMENT:

Upon successful completion of Trust registration, PAN issuance, and compliance with mandatory KYC formalities, a dedicated official bank account shall be opened in the name of: **NALLATHANGAL WATER RESOURCES TRUST**. All public contributions, donations, sponsorships, and grants received shall be routed through this official bank account and accounted for transparently. The bank account shall be operated jointly by authorized office bearers (such as the C Panneerselvam, and Chellamuthu thirumalaisamy) as mandated by the Executive Committee or General Body. To ensure financial safety, rigorous controls, and absolute accountability, the Trust shall mandate a joint authorisation / any two out of designated authorised signatories system for all financial withdrawals or transfers.

17. POWER TO ALTER RULES AND REGULATIONS:

The Board of the Trust, by way of a Special Resolution, shall have the full power and authority to make, amend, modify or rescind any of the clauses contained in this Deed relating to the management and administration of the Trust, subject to the applicable laws and regulations in force from time to time.

18. APPLICATION OF INCOME AND TRUST FUND:

The Board of Trustees shall have the power to invest the funds of the Trust in movable and/or immovable properties and in such other investments as they may deem appropriate for achieving the objects of the Trust, provided that all such investments shall be made in accordance with Section 13(1) read with Section 11(5) of the Income-tax Act, 1961, and any other applicable law for the time being in force governing charitable trusts.

19. INDEMNITY:

Every Trustee shall be indemnified out of the funds of the Trust against any loss or liability arising from or occasioned by any investment made out of the funds of the Trust, except where such loss or liability has resulted from the Trustee's own negligence, wilful misconduct or breach of duty. Every Trustee shall also be indemnified by the Trust against all proceedings, suits, claims, costs, damages and expenses incurred in connection with any claim relating to the affairs of the Trust or arising from the lawful exercise of the powers or discretions vested in such Trustee under this Deed, provided that such act or omission was undertaken in good faith and in the proper discharge of the Trustee's duties.

20. IRREVOCABILITY:

The Trust is irrevocable

21. DISSOLUTION:

Mandates that upon closing or dissolving the trust, remaining net assets must transfer to another entity, trust, or society sharing similar objectives.

22. PROCEEDINGS OF THE TRUST:

Any Defect in the Constitution of the Trust shall not invalidate its Proceedings.

23. WINDING UP OF THE TRUST:

In the event of the dissolution or the winding up of the Trust the assets remaining on the dissolution shall be transferred to another Trust, society or institutions whose objects are similar to those of this Trust and that in no event shall the assets so remaining be distributed among the Trustees.

24. RESIDUARY:

For matters not provided for in these presents, the provisions of the Indian Trust Act and the Income Tax Act, 1961 and rules made thereunder or other acts and rules which covers the trust and its activities will apply accordingly.

25. EXECUTION AND SIGNATURES:

IN WITNESS WHEREOF, the founding members have set their respective hands and signatures to this Memorandum of Association and By-laws on this day, month, and year first written above.

Date _____

Place: _____

Signatures of the Founding Members / Governing Board:

1. GOVINDASAMY NACHIMUTHU

2. NATRAJ SENNIYAPPA

3. PANNEER SELVAM C

4. PANNEERSELVAM TIRUMALAISAMY

5. CHELLAMUTHU THIRUMALAISAMY

6. P SUBRAMANIAN

7. S SIVASUBRAMANIAN

8. PALANISAMY NACHIMUTHU

9. PALANISAMY N

10. THIRUMALAISAMY KUPPUSAMY

WITNESSES:

1.

2.